

March 14, 2025

TO: Office of Science & Technology Policy and NITRD National Coordination Office, National Science Foundation

FROM: Cameron F. Kerry and Joshua P. Meltzer*†

RE: Request for Information on Artificial Intelligence Action Plan

The Artificial Intelligence Action Plan is not being written on a blank sheet because executive orders defining AI policy in the first Trump administration remain in force. With then-CTO of the United States Michael Kratsios leading the work, Executive Orders 13859 (“Maintaining American Leadership on Artificial Intelligence”) on February 11, 2019 (the “2019 Order”), and 13960 (“Trustworthy Artificial Intelligence in the United States Government”) on December 3, 2020 (“the “2020 Order”) put American leadership and innovation in AI at the center of U.S. policy. This focus is consistent with Executive Order 14179. The AI Action Plan should therefore maintain key elements of these orders, which recognized that American leadership and innovation in AI depend on AI that is trustworthy and responsible and on robust international engagement.

Some five years after the 2019 and 2020 Orders, AI has gone from a nascent technology to a transformational factor in almost every sphere, altering the global AI landscape and marketplace since that time. In particular, the release of large generative AI models has accelerated development, deployment, and capabilities of AI and captured public imagination. The recent release of China’s DeepSeek R1 demonstrates not only the diffusion of knowledge and development, but also the potential for models that are fine-tuned by distillation of information from larger models and displaying processing steps (or “chain of thought”), possibly enabling models with wider, more efficient, and specific uses and greater explainability and interpretability of outputs.

During this time, governments around the world have accelerated their own efforts to benefit from the opportunities of AI and manage its risks through national policies and strategies and intergovernmental initiatives. These include the Hiroshima Process and Principles of the G7, the Global Digital Compact adopted by the United Nations, joint

† Respectively Ann R. Andrew H. Tisch Distinguished Visiting Fellow in Governance Studies, and Senior Fellow at The Brookings Institution. These comments are submitted in individual capacities based on work in the field of AI policy and are not made on behalf of Brookings or any other entity; the affiliation is listed for identification purposes only.

principles of the African Union and ASEAN, and legislation enacted by the European Union and under way in Brazil and India among other countries.

This array of developments in technology and international initiatives around AI governance calls for even greater government engagement than in 2020 to support innovation, promote responsible AI adoption, and engage with international partners.

The previous Trump administration AI orders

The 2019 Order put in place the American AI Initiative with the aim of maintaining “[c]ontinued American Leadership in AI” and “shaping the global evolution of AI.” To accomplish this, the order called for “a concerted effort to promote advances in technology and innovation, while protecting American technology, economic and national security, civil liberties, privacy, and American values and enhancing international and industry collaboration with foreign partners and allies.” It articulated five principles to support these goals: (1) driving technological breakthroughs, (2) development of technical standards and “reduc[ing] barriers to safe testing and deployment...,” (3) training AI skills, (4) “foster[ing] public trust and confidence” in AI and protecting civil liberties, privacy, and American values, and (5) promoting “an international environment that supports American AI research and innovation and opens markets” These policies and principles remain valid in 2025.

The 2020 Order focused on the role of federal agencies in adopting and promoting AI and leveraging the impact on the marketplace of federal agencies as purchasers of AI systems. It declared as a matter of national policy that federal agencies should promote and deploy innovative AI “that fosters public trust, builds confidence in AI, protects our Nation’s values, and remains consistent with all applicable laws, including those relative to privacy, civil rights, and civil liberties.” To these ends, the order established a set of principles for agencies to apply, which included benefits that “significantly outweigh” risks, accuracy, reliability, and effectiveness; safety, security, and resiliency; and traceability, human responsibility, monitoring, transparency, and accountability.

In significant respects, President Biden’s executive order of October 30, 2023 built on these key elements of the 2019 and 2020 Orders even as it shifted priorities and established more detailed requirements for federal agencies and AI developers to assess AI systems. The 2023 Order likewise aimed at maintaining U.S. leadership and leveraging federal agencies to accelerate adoption and model best practices for the marketplace. It too focused on protecting national security. In assessing what actions taken pursuant to that order should be undone, therefore, the government should retain those that built on the 2019 and 2020 Orders

Measures for USG AI management and protection of national security

Chief AI Officers and AI Council

One key action that the AI Action Plan should retain is the appointment Chief AI Officers in federal and the AI Council established under Section 10 of the 2023 Order. Notably, the 2023 Order included among the functions of these officers “carrying out the agency responsibilities described [in the 2020 Order].” This is consistent with the requirement in the 2020 Order for “responsible official(s)” to carry out these functions, but with the effect of elevating the functions commensurate with the enlarged importance of AI. Keeping the structure in place will ensure the visibility and priority of AI adoption and management in federal agencies. The Chief AI Officers take on increased importance considering the recent termination of the Presidential Innovation Fellows Program, since the 2020 Order provided for PIF experts to work within agencies to design AI adoption. Moreover, the termination of numerous probationary employees will sweep in many of the more than 200 AI experts hired in the “AI talent surge” under the 2023 Order. Eliminating the Chief AI Officers as well would deal a serious setback to AI management in federal agencies.

Modeling a risk-based approach to AI

The agency processes should continue to include measures to ensure that AI systems deployed by federal agencies are responsible, safe, and secure, building on the principles and policies of the 2020 Order. Like both the 2019 Order and 2023 Order, the AI Action Plan should provide for the Office of Management and Budget (OMB), in consultation with the Office of Science and Technology Policy, the AI and Crypto Czar, and the National Security Council, to issue guidance to federal agencies to carry out these goals. This guidance should expand on the [OMB guidance](#) of November 17, 2020, including aspects of the [further OMB guidance](#) of [March 28, 2024](#) that reinforce the functions described in the 2020 Order.

The functions in the 2020 Order include risk management at the agency level. The November 17, 2020 OMB guidance document on AI applications called for encouraging both innovation and stewardship, and identified a set of risks “that must be carefully assessed and appropriately addressed” with risk assessment and risk management. The 2023 National Institute of Standards and Technology AI Risk Management Framework provides an adaptable tool for these purposes, amplified by the principles of the 2020 Order and relevant parts of the 2023 Order and OMB guidance issued thereunder.. Just as federal agencies have been required to implement the NIST Cybersecurity Risk Management Framework, they should be similarly required to apply the AI RMF to assessing their AI risk profiles.

Standards development

There are additional tools in place to manage AI risk and conduct robust evaluations of AI systems as result of progress in standards development in recent years. The joint International Standards Organization and International Electrotechnical committee AI

standards, ISO/ IEC JTC1/SC42, has published [34 AI standards](#), including most significantly ISO/IEC 42,001 on risk assessment. The 2020 Order called for federal to “continue to use voluntary consensus standards developed with industry participation where applicable.” Continuation of this policy would encourage federal agencies to use standards like ISO/IEC 42,001 as references to identify and manage risks and promote AI that fosters public trust and builds confidence in AI as well remains consistent with American laws and values.

The system of voluntary consensus standards development has been a bedrock principle of U.S. technology policy towards standards. Like the 2020 Order, the 2019 also referred to standards development, calling for NIST to develop a plan for federal engagement in technical standards, which was issued in August 2019. The 2023 Order in turn called for a coordinated government effort to work with international partners “to drive the development and implementation of AI-related consensus standards, cooperation, and information sharing.” This work should continue in support of America’s longstanding approach to standards. For more on standards development policy, see [“Small Yards, Big Tents: How to Build Cooperation on Critical International Standards”](#) (Brookings, 2023).

To reinforce the enlarged and respected role that NIST plays in AI policy, standards development, and pre-standardization research, the AI Action Plan should include support for an increase in NIST’s budget request on the order of the 2024 request for an increase of \$358.5 million.

National security risks

The increased risks associated with generative AI include national security risks. The scope of wide range of applications enabled by foundational models is still being determined even by the developers of these systems. Nonetheless, some risks are evident, and these include dual-use capabilities that pair beneficial uses with national security risks – for example, Nobel-Prize-winning protein folding discoveries that can also be used to discover bioweapons. Both in the development of the 2023 Order and in its implementation, the federal government conducted a thoroughgoing study of these implications in a range of areas. This review built on steps in the first Trump administration to heighten export controls relating to AI and emerging technologies. The AI Action Plan in turn should build on the controls established under the 2023 Order rather than start on a clean sheet. It should recognize that, as illustrated by the emergence of DeepSeek, the pace of AI development and capabilities is a moving target. Rather than erase the national security aspects of the 2023 Order, the AI Action Plan should refresh the review undertaken for the 2023 Order and anticipate continuing to so at intervals.

International Engagement

The 2019 Order affirmed the importance of international engagement in maintaining U.S. leadership in AI. Achieving “an international environment that supports American AI research and innovation” and opening markets requires active engagement on the part of the U.S. Government and other U.S. leaders in AI.

The first Trump administration had significant achievements on the international front. It negotiated the [OECD Recommendation on AI](#) – a set of principles very aligned with those in the 2019 Order. The OECD principles call for the development of “robust, secure and safe” AI systems, the adoption of risk management approaches to mitigate risks of AI systems, and international cooperation to promote the development of “trustworthy AI”. The U.S. also joined the launch of the Global Partnership on AI in 2020 (which now operates in alliance with the OECD, coordinating efforts and platforms while broadening the base of countries participating). The OECD has been a valuable channel for balanced, research-based policy development that incorporates extensive stakeholder involvement. GPAI expands the networks of experts informing global AI policy.

The G7 operates as a key hub in the [networks of AI governance](#). It has been an early mover in initiatives like the OECD Principles, and the more recent Hiroshima Process embodies an approach to AI governance consistent with U.S. policy. See “[Network Architecture for Global AI Policy](#)” (Brookings, 2025). Alongside these initiatives, U.S. developers and deployers of AI have taken collaborative steps through commitments to the Hiroshima Principles now monitored by the OECD (and building on commitments given to the White House in 2023), and the [Partnership for Global Inclusivity on AI](#) between the U.S. government and leading American AI companies to advance AI capacity and adoption in the developing world. The AI Action Plan should continue participation in such international partnerships, both to sustain U.S. leadership and open markets for U.S. companies.

These partnerships should include the international network of AI safety institutes, which emerged from the Bletchley AI Summit. There, [Elon Musk told British Prime Minister Rishi Sunak](#) the government’s role in AI safety is like a “referee” and “when you talk about superintelligence...then there is a role for government to play to safeguard the interest of the public.” As discussed above, the risk principles of the 2019 and 2020 Orders include AI that is “safe, secure, and resilient.” To this end, the U.S. AI Safety Institute has collaborated with foundational model developers and worked bilaterally with allies like the U.K. to help address risks such as bioweapon development and taken a leadership role by convening an international network of safety institutes and their equivalents to explore methods of measurement and testing foundational models. Keeping abreast of such risks and participating in these networks is essential to

maintaining American leadership in AI technology and governance. See Mark MacCarthy, [“A technical AI government agency plays a vital role in advancing AI innovation and trustworthiness”](#) (Brookings, March 14, 2025).

The U.S. cannot afford to abdicate the field in international AI governance. The array of international initiatives in this space continues to grow with or without the United States. For example, after the U.S. introduced a resolution on AI in the United Nations General Assembly on “safe, secure and trustworthy [AI] systems for sustainable development” that was passed unanimously in March of last year, China introduced its own AI resolution in July. The Chinese resolution (which also passed unanimously) covered much of the same ground, but with a greater emphasis on state control of outcomes. If the United States does not build alliances in the AI space, China and others will step in to lead. The U.S. needs to remain an effective voice in the international discussion of AI opportunities and risks.

Comprehensive privacy protection

The data aggregated for training AI systems increasingly encompass everything available online, accumulating large volumes and varieties of personal information and as machine learning datasets. As a result, the output of these systems can cause inadvertent data breaches and privacy intrusions. In addition, the power and granularity of AI increases the power of data analytics to make detailed inferences about individuals. Studies by the Pew Research Center and by KPMG (among others) show majorities of consumers are concerned that information collected by AI developers may be used in ways not originally intended and may compromise privacy and data security. See [IAPP, Consumer Perspectives of Privacy and Artificial Intelligence](#) (March 14, 2025).

Protection of individual privacy is therefore a necessary component for trustworthy AI. Numerous members of Congress in both parties as well as stakeholders have pointed out that comprehensive privacy legislation would establish a foundation for AI policy. See [“How privacy legislation can help address AI”](#) (Brookings, 2023) and “Protecting privacy in an AI-driven world” (Brookings, 2020). Bipartisan reports in both the Senate and House concluded that federal privacy legislation would establish a baseline of protection to support AI development and adoption. The House task force devoted a section of its report to data privacy and reported that “[t]houghtful and effective data privacy policies and protections will support consumer confidence in the responsible development and deployment of AI systems.” The Senate bipartisan working group supported “a strong comprehensive federal data privacy law to protect personal information,” addressing data minimization, data security, consumer data rights, consent and disclosures, and data brokers. In the current Congress, a task force of the

House Committee on Energy & Commerce has initiated an inquiry on the elements of privacy legislation

In the absence of federal legislation, an increasing number of states are stepping, with 19 states having adopted varying forms of comprehensive privacy legislation and [18](#) adopting legislation regulating AI. This creates an irregular patchwork of state laws creates uneven protections for consumers and complex compliance for businesses.

The AI Action Plan should include a plan for the Executive Branch to engage with Congress and stakeholders toward adoption of comprehensive federal information privacy legislation that will establish a national baseline for trustworthy use of personal information.

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Thank you for the opportunity to provide these comments. We welcome any questions or follow-up you may have.

Respectfully submitted,[‡]

Cameron F. Kerry

Joshua P. Meltzer

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